

24NWCV01223 24NWCV01223

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-08-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CL%2C08%2F06%2F2026

Source SHA-256: 1407ba9db061191e51f1a623cb96fec42acad7ad6eda0b709da28c58005c5c0f

Case Number: 24NWCV01223 Hearing Date: August 6, 2026 Dept: L

I.

Defendant F&M Plaza, LLC's Motion to

Compel Further Responses to Requests for Admission is DENIED without prejudice.

II.

Defendant F&M Plaza, LLC's Motion to

Compel Further Responses to Form Interrogatories is DENIED without prejudice.

Defendant to give notice.

Background

This is an action for violation of the Unruh Civil Rights Act, Civil Code § 51 et seq. On April 18, 2024, Plaintiff James Shayler ("Plaintiff") filed this action against Defendant F&M Plaza, LLC ("Defendant") and Does 1 to 10. The Complaint alleges that Plaintiff was denied equal access to El Divino Salvador Del Mundo ("Business") located at 13800 Leffingwell Rd, Whittier, CA 90604 ("Property"), which is owned by Defendant.

The following matters are on calendar:

- Defendant's

Motion to Compel Further Responses to Requests for Admission ("MTCF RFAs")

- Defendant's

Motion to Compel Further Responses to Form Interrogatories ("MTCF FROGs")

On the Court's own motion, the
MTCF RFAs was continued from August 4, 2026 to today's date. (8/4/26 Minute
Order.)

Legal Standards

In responding to a set of
interrogatories, a party must provide one of the following: (1) an answer
"containing the information sought to be discovered"; (2) "an exercise of the
party's option to produce writings"; or (3) an objection to the particular
interrogatory.¿(Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an
interrogatory "shall be as complete and straightforward as the information
reasonably available to the responding party permits." (Code Civ. Proc., § 2030.220,
subd. (a).) If any objections are made, "the specific ground for the objection
shall be set forth clearly in the response." (Code Civ. Proc., § 2030.240,
subd. (b).) Upon receipt of responses to interrogatories, the propounding
party may move for an order compelling further responses if
they deem the responses to be "evasive or incomplete" or if "[a]n
objection to an interrogatory is without merit or too general." (Code Civ.
Proc., §§ 2030.300, subds. (a)(1), (a)(3).)

In responding to a set of
requests for admission, a party must do one of the following: (1) admit so much
of the matter involved in the request as is true, either as expressed in the
request itself or as reasonably and clearly qualified by the responding party;
(2) deny so much of the matter involved in the request as is untrue; or
(3) specify so much of the matter involved in the request as to the truth
of which the responding party lacks sufficient information or knowledge.¿(Code
Civ. Proc., § 2033.220, subd. (b).) Each answer to an interrogatory "shall
be as complete and straightforward as the information reasonably available to
the responding party permits." (Code Civ. Proc., § 2033.220, subd. (a).) In
lieu of admitting or denying the request for admission, the party may serve
objections. (Code Civ. Proc., § 2033.210, subd. (b).) On receipt of a responses
to requests for admission, the requesting party may move for an order
compelling further responses if they deem the responses to be
"evasive or incomplete" or if "[a]n objection to an interrogatory is without
merit or too general." (Code Civ. Proc., § 2033.290, subd. (a).)

A motion to compel further

responses to interrogatories or requests for admission must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2033.290, subd. (b)(1).)

Discussion

The Court initially provides the following background regarding the discovery at issue, which was deduced from all evidence: On November 14, 2025, Defendant propounded the FROGs and RFAs on Plaintiff. On December 16, 2025, Plaintiff served his initial responses. On January 26, 2026, Defense counsel sent a meet and confer letter stating Defendants’ position and requesting further responses. Plaintiff agreed, and on February 3, 2026, Plaintiff served further responses. On March 17, 2026, Defense counsel sent a second meet and confer letter. According to Defense counsel, Plaintiff responded to the letter, defending the responses but offering some supplementation. On March 20, 2026, Defendant requested Plaintiff to cure the deficient responses by an unknown deadline, and Plaintiff failed to do so or express a clear commitment to do so. These Motions were filed on March 23, 2026.

The Court addresses both Motions as they suffer from similar procedural deficiencies.

Firstly, as noted by Plaintiff in the oppositions, there are various errors in the documents submitted in support of the Motions. For example, the Notice of MTCF FROGs refers to the incorrect plaintiff, “Brian Whitaker.” The Proposed Order for the MTCF FROGs is titled “Order on Motion to Compel Responses to Special Interrogatories” and refers to “Defendant’s Motion to Compel Further Responses to Requests for Admission, Set 1” in the body. The memorandum of points and authorities in support of the MTCF FROGs cites to the incorrect legal standard. Further, both of the Notices for each motion seek sanctions against the incorrect Plaintiff’s counsel, “Tristan Jankowski, Esq.” Defendant concedes to these errors in the replies. Defendant argues that Plaintiff is not prejudiced by these errors. Alternatively, Defendant seeks leave to correct the errors.

The most glaring error is that Defendant submitted discovery requests and meet and confer letters from another case entitled “Whitaker v. Mochinut” in the Exhibit Lists in support of

the Motions. Plaintiff has served objections to these incorrect exhibits. Defendant attempts to submit corrected records in Amended Exhibit Lists with the reply. Specifically, Defendant submits 1) Defendant's discovery requests, 2) Plaintiff's February 3, 2026 further responses to the discovery, and 3) Defendant's January 26, 2026 meet and confer letter. The Court notes that the replies were submitted late (based on the original hearing dates).

The Court finds that these errors are not inconsequential. For example, naming the correct counsel to be sanctioned in the Notice of Motion is required by Code. (See Code of Civ. Proc., § 2023.040 ["A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought."].) Separately, these errors are plainly unprofessional.

Second, the Separate Statements in support of the Motions only reproduce Plaintiff's further responses provided on February 3, 2026, not Plaintiff's initial responses. California Rules of Court, Rule 3.1345(c)(2) requires that the separate statement reproduce "[t]he text of each response, answer, or objection, and any further responses or answers."

Lastly, the Court finds that the parties failed to adequately meet and confer prior to the filing of these Motions.

"The Discovery Act requires that, prior to the initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain 'an informal resolution of each issue.' [Citations.] This rule is designed 'to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. . . .' [Citations.] This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. . . . [T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435, 1439, emphasis added.)

As previously noted, Amended Exhibit Lists only attach Defendant's January 26, 2026 meet and confer letter.

Defendant does not submit the alleged March 17, 2026 meet and confer letter regarding Plaintiff's further responses.

Further, it appears that the parties were in the middle of meet and confer discussions when Defendant filed this Motion. Based on the information provided by Defendant, the Court is not persuaded that the parties meaningfully discussed whether Plaintiff could provide further responses prior to these Motions being filed.

Based on the plethora of deficiencies, Defendant's Motions to Compel Further are DENIED without prejudice.

The parties are ordered to meet and confer regarding the discovery requests.